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File No.: EXP202305853

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 12, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against VODAFONE ONO, S.A.U. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202305853

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On July 21, 2022, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against VODAFONE ONO, S.A.U. with NIF A62186556 (hereinafter, the respondent).

The reasons on which the complaint is based are as follows:

The complainant presents a complaint for receiving commercial calls on their mobile line ***PHONE.1, made from the line ***PHONE.2 on the following days:

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June 20, 2022, at 18:04 hours

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June 22, 2022, at 20:42 hours

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July 1, 2022, at 18:15 and 18:31 hours

Along with the complaint, a copy of the first request for deletion, dated 06/25/2022, is provided.

On 06/27/2022, they requested a copy of the ID to process their request.

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On 07/20/2022, the complainant sent a new deletion request attaching a copy of their ID and indicating a list of calling lines.

On 07/20/2022, they were informed that it was not possible to generate such deletion, as the National Identity Document ***NIF.1 was not registered in their data files.

They were also informed that the referenced line ***PHONE.1 was not listed in their file.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on August 11, 2022, the complaint was forwarded to the respondent, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

On September 16, 2022, a response was sent to the information request from this Agency, stating that it has been verified that the numbers reported by the complainant are not listed in their database of numbers associated with the collaborators who make solicitation calls on behalf of Vodafone.

Notwithstanding the above, the respondent claims that it cannot be ruled out that these calls were made by third parties unrelated to VODAFONE or its agents, impersonating the corporate identity of this entity, with fraudulent or malicious intent, through the use of "spoofing" techniques or corporate identity theft.

On the other hand, in its statements, the respondent continues to say that it has created a single

database with the list of phone numbers that each collaborator, distributor, or supplier engaged in solicitation activities uses in the performance of these services, in order to identify who is responsible for such calls.

It also states that it aims to ensure that these companies do not use numbers other than those of VODAFONE and that all are clearly identified and linked to the entity using them.

Furthermore, it indicates that solutions and measures have already been proposed to be applied in relation to its collaborators in order to prevent unwanted calls from continuing to occur; for example, it states that the following actions have been implemented since January 2020:

□

Require all door-to-door collaborators by contract to make calls from Vodafone numbers through a VoIP operator provided by Vodafone.

In this way, it considers that through the dialing system, the databases of campaign recipients can be filtered with the Robinson lists. This is because it claims that the databases used for solicitation are the property of

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collaborator and given that Vodafone does not provide them with those databases, believes that it is the best solution to ensure filtering.

□

Develop a system so that sales can be cross-checked in the systems, rejecting those that have not been made through the Voice operator and therefore cannot be confirmed to meet the filtering requirements.

This ensures that all traffic is controlled and complies with the requirements set by Vodafone, discouraging the use of numbers not authorized by Vodafone and, therefore, the lack of prior filtering with the advertising exclusion lists.

In its response to the request made by this Agency, the entity being claimed states that other improvements have been progressively implemented for collaborators, the main one being the necessary process to adapt to the modification made by ADigital in February 2020, of the public Robinson list consultation system, moving from a system based on queries through manual downloads of files to an individual query system via APIs.

It also indicates that a requirement has been established that no collaborator of theirs may market their products or services using telemarketing as a channel if they are not adhered to the described routing system.

Regarding the requests for the exercise of suppression of the claimant's personal data, included in the documents submitted to Vodafone on June 25 and July 20, 2022, after the internal investigations carried out, VODAFONE states that the suppression request could not be granted, as the claimant's data is not currently in the databases of this entity.

The claimant's number is included in Vodafone's internal Robinson list, which is uploaded to the routing system so that all collaborators adhered to it cannot contact the claimant.

In this regard, a copy of the letter prepared for Mr. A.A.A. is provided, informing him of the actions taken by my represented party in response to his complaint and apologizing for the inconvenience caused.

THIRD: On September 26, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: The General Subdirector of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

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In relation to the commercial calls made from the line ***PHONE.2 on June 20, June 22, and July 1, 2022, to the claimant's mobile phone, this Agency indicates that after requesting VODAFONE ONO S.A. on October 7, 2022, who is the owner of the phone number.

In a first document dated November 3, 2022, it is indicated that the entity holding the line is the company:

BNT BUSINESS S.L., with NIF B93238533 and address Calle Iván Pavlov number 8, Blq 2 Oficina 1B, C.P. 29590 in Málaga.

It is indicated that the telephone line is sub-assigned through a resale agreement between Vodafone and BNT signed on July 19, 2021.

However, on November 8, 2022, a second document was received by this Agency sent by VODAFONE ESPAÑA S.A.U. rectifying the previous document and stating that the telephone line ***PHONE.2 belongs to the agency VESALEADS S.L., a collaborating agency of VODAFONE, therefore confirming that, from this telephone line, the calls reported by the claimant could have been made, with this agent acting on behalf of VODAFONE.

It has been determined that there was a specific failure in the process of including the claimant's number in the routing system and inclusion in Vodafone's internal Robinson List.

This caused the process not to be completed correctly.

Thus, this human error in uploading the information to the routing system caused the claimant's number not to be loaded correctly in the routing system and, consequently, that Vodafone's collaborating agents, particularly VESALEADS, could make the calls that led to this incident.

However, the entity being claimed informs that the reported incident is currently resolved and that the information upload in the routing systems has been adequately corrected.

LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this sanctioning procedure, by virtue of the powers granted by Article 58.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR) and according to the provisions of Articles 47, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD).

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In accordance with the provisions of Article 114.1.b) of the LGTEL, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this sanctioning procedure.

II

The known facts could constitute an infringement attributable to the complained party for violation of Article 48.1.b) of Law 9/2014, of May 9, General Telecommunications Law (hereinafter, LGT), relating to the "Right to the protection of personal data and privacy in relation to unsolicited communications, with traffic and location data, and with subscriber directories" included in Title III, which provides as follows:

"1. Regarding the protection of personal data and privacy in relation to unsolicited communications, end users of electronic communications services shall have the following rights:

a) Not to receive automated calls without human intervention or fax messages for commercial communication purposes without having given their prior and informed consent for this.

b) To oppose receiving unwanted calls for commercial communication purposes made through

systems other than those established in the previous letter and to be informed of this right.”

III

In this case, the complainant reports receiving commercial calls on their mobile line ***PHONE.1, made from line ***PHONE.2 on June 20 and 22 and July 1, 2022, despite their request for suppression on June 25 and 27, 2022.

VODAFONE, for its part, states that the number ***PHONE.1, although included in the internal Robinson List, due to usual operational procedures, a human error occurred on the part of the agent who was supposed to upload this new information into the routing system, and consequently, the collaborating agents of Vodafone, particularly VESALEADS, were able to make the calls that led to this incident.

However, the reported entity states that the reported incident is currently resolved and that the information upload in the routing systems has been adequately corrected.

IV

Therefore, the reported entity acknowledges having made commercial calls despite the complainant being registered in the Robinson List, which constitutes a violation of Article 48.1.b) of the LGT that recognizes end users' right to oppose receiving unwanted calls for commercial communication purposes, and, once such opposition has been exercised and expressed, their data cannot be used for this purpose.

Although the aforementioned article does not establish such a right, we must refer to the data protection regulations that govern the right of opposition: Article 21 of the GDPR (Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data) and Article 23 of the LOPDGDD (Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights).

This infringement is classified as "minor" in Article 78.11) of said regulation, which considers as such: “The non-compliance with public service obligations, public obligations, and the violation of the rights of consumers and end users as established in Title III of the Law and its implementing regulations,” which may be sanctioned with a fine of up to €50,000, in accordance with Article 79.d) of the aforementioned LGT.

V

In accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to grade the sanction to be imposed according to the following criteria established in Article 80.1 of the LGT:

- a) The severity of the infringements previously committed by the subject being sanctioned.
- b) The social impact of the infringements.
- c) The benefit that the infringer has obtained from the act that is the subject of the infringement.
- d) The damage caused and its repair.
- e) The voluntary compliance with the precautionary measures that, if applicable, are imposed in the sanctioning procedure.
- f) The refusal or obstruction to access the facilities or to provide the requested information or documentation.
- g) The cessation of the infringing activity, prior to or during the processing of the sanctioning file.”

The aforementioned article adds that “For the determination of the sanction, the economic situation of the infringer will also be taken into account, derived from their assets, their income, their possible family burdens, and other personal circumstances that they can prove affect them...”

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In relation to the infringement of Article 48.1 b) of the LGT, by virtue of the indicated provisions, and without prejudice to the outcome of the instruction of the procedure, for the purpose of determining the

amount of the sanction to be imposed in this case, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 80.1) and 2) of the LGT:

- The consideration of the economic situation of the offender (point 2), given that it is a large company. Based on the evidence obtained during the preliminary investigation phase, it is considered appropriate to graduate the sanctions to be imposed in the amount of €15,000 (fifteen thousand euros) for the infringement of Article 48.1 b) of the LGT.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against VODAFONE ONO, S.A.U. with NIF A62186556, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 48.1.b) of the LGT classified as "minor" in Article 78.11) of the aforementioned Law.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the actions prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be €15,000 (fifteen thousand euros).

FIFTH: TO NOTIFY this agreement to VODAFONE ONO, S.A.U. with NIF A62186556, granting a hearing period of one month, in accordance with Article 84.4 of the LGT, for it to formulate allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

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In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; which will entail a reduction of 20% of the sanction to be imposed in this procedure. With the application of this reduction, the sanction would be set at €12,000, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €12,000 and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with that which corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €9,000.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above

€12,000 or €9,000, it must do so by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it adheres.

Likewise, it must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement or, where appropriate, from the draft initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Director of the Spanish Agency for Data Protection

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SECOND: On June 28, 2023, the respondent has proceeded to pay the fine in the amount of 12,000 euros by utilizing one of the two reductions provided for in the previously transcribed Initiation Agreement. Therefore, the acknowledgment of responsibility has not been established.

THIRD: The payment made entails the waiver of any action or appeal in the administrative route against the fine, in relation to the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the powers attributed to the Spanish Agency for the Protection of Data by other laws" establishes that: "The provisions in Title VIII and its development regulations will apply to the procedures that the Spanish Agency for the Protection of Data must process in exercising the powers attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the

termination of the procedure, except in relation to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness will be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for the Protection of Data RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202305853, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to VODAFONE ONO, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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